

Cadillac WWTP : 15637

IPP - Industrial Pretreatment Compliance Inspection Checklist

Inspector: Claire Lowe

Start Date: 08/18/2021

Inspection Information

<i>Control Authority:</i>	Cadillac WWTP		
<i>NPDES Permit #:</i>	MI0020257		
<i>Inspection Date(s):</i>	08/26/2021		
<i>Period Covered by Inspection:</i>	January 1, 2020 - August 26, 2021		
<i>Inspector(s):</i>			
Name	Title	Phone	Email
Claire Lowe	Environmental Quality Analyst	989-330-4639	LoweC9@michigan.gov
<i>Facility Representative(s):</i>			
Name	Title	Phone	E-mail
Doug Langworthy	Assistant Water Resources Supervisor	231-775-2841	dlangworthy@Cadillac-MI.net

Section I: Industrial Pretreatment Program (IPP)

Implementation: Enforcement Response Plan

<i>1a. Are you having problems with any industrial users (IU)?</i>	☐ Yes ☒ No
<i>1b. If Yes, complete the following:</i>	
Facility Name(s)	Nature of Problem and CA Response

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Section I: Industrial Pretreatment Program (IPP)

Implementation: Enforcement Response Plan

2a. Did the POTW experience any of the following since the last inspection?

Check all that apply	Yes	No	Industrial Cause	Nonindustrial Cause	Cause Unknown	Comments
Interference		X				
Pass-through		X				
Fire or explosion		X				
Corrosive structural damage		X				
Flow obstruction		X				
Excessive flow rates		X				
Heat problems		X				
Interference or pass through due to oil and grease		X				
Toxic fumes		X				
Illicit dumping of hauled wastes		X				
Health and safety issues		X				
NPDES violations (specify)	X		X			Copper violations for April and May 2020. NPDES permit limit was reduced in 2019 from 50 to 11. Copper violations did occur for AAR facility CCI, CRM, Fiamm and Rec Boat - Trailer for that same period
Excessive pollutant contributions	X		X			Some industries do violate their permits, some regularly but they're not causing the POTW problems

2b. For each instance of industrial cause checked above provide information in table below

IU Name	Action Taken
AAR facility CCI, CRM, Fiamm and Rec Boat - Trailer	Notice of violation sent. No follow up action taken.

3. Describe any problems encountered with implementing the approved Enforcement Response Plan (ERP):

The CA haven't been following the ERP on file.

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Section I: IPP Implementation: Procedures

4a. Any new significant industrial users (SIU) since the last IPP Annual Report was submitted?

SIU/CIU Name	CIU Category if applicable
None	

4b. How do you find out about new IUs?

Permitting for water and sewer goes through the department. Mr. Langworthy did start work on an Industrial user survey but this was never completed.

4c. How do you ensure they are properly regulated?

Inspections for new facilities and existing users only. They have not completed the IU survey due to lack of resources.

5a. Are all of your SIUs currently covered by an enforceable permit or equivalent control document? If No, list and explain in 5b.

☐ Yes ☒ No

AAR 7th street - the annual report submitted in March 2021 stated their permit expired at the end of 2020. No new permit has been issued. The facility is shut down.

5b. SIU Table

SIU Name	Explanation
AAR 7th St	The facility is shut down and not discharging. At the time the permit expired Mr. Langworthy sent a letter to the IU - he is checking to see if it was terminated. The permit should be terminated if it hasn't already been, or renewed so the IU is aware ...

6a. How many permits were reissued more than 180 days after the expiration date of the previous permit? Use table in 6b if answer is not 0.

AAR 7th street never reissued

AAR 7th street permit should be terminated if it is not reissued. Documentation of this must be kept on file.

6b. SIU Table

SIU Name	Explanation
AAR 7th Street	Facility is not discharging. The Permit must be terminated if it is not reissued.

7a. In the past 12 months, how many SIUs were not: [R 323.2306(c)(v)]

Parameter	Number
Sampled for all regulated pollutants at least once by CA	3
Formally inspected at least once by CA	0

AAR is no longer discharging
Rec boats - discharge limits not included in the permit, these are not SIUs because they don't have enough flow and aren't categorical

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Section I: IPP Implementation: Procedures

7b. List facilities that were not sampled for all regulated pollutants and/or formally inspected at least once in the past 12 months and provide an explanation.

Facility	Explanation
AAR 7th Street	No longer discharging - this permit should be terminated
Rec Boat holdings Sport Div	Not an SIU as they are very low flow and not CIUs
Rec Boat holdings Cruiser Div	Not an SIU as they are very low flow and not CIUs

8. Describe the training provided for IPP staff since the last inspection.

None. Mr. Langworthy does not appear to have been given sufficient training to effectively administer the program.

9. What modifications are needed, if any, to the approved program to address changed local conditions (new industry, additional flows, changes to the WWTP, etc) or program deficiencies?

☒ Yes ☐ No

Headworks loading study is needed, NPDES permit limits for copper at a minimum have been reduced since the last headworks loading study, this has resulted in violations of the NPDES permit. An IU survey should be completed, permits need significant revisions. Recommended the streamlining updates are incorporated into the program (e.g. flow proportional sampling).

10a. Do any Underground Storage Tank (UST), Comprehensive Environmental Response, Compensation, and Liability Act (CERCLA), or Resource Conservation and Recovery Act (RCRA) corrective action sites and/or other contaminated groundwater sites discharge wastewater to the POTW?

☐ Yes ☒ No

10b. If Yes, was their discharge characterized?

☐ Yes ☐ No ☒ NA

10c. If Yes, how did you develop the discharge limitations for these facilities?

11a. Does the CA accept any waste (including septage) by truck, rail, or dedicated pipeline?

☒ Yes ☐ No

11b. If Yes, please list mode and type of waste.

Mode	Type of Waste
Trucked waste	Holding tank waste - car dealership vehicle wash water about 3000 gal/month

11c. How do you determine if the POTW can adequately treat these wastes?

Waste is characterized - water and soap residue only.

11d. What are the designated discharge points?

At the EQ basin

11e. Is any of the waste Hazardous Waste?

☐ Yes ☒ No ☐ NA

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Section I: IPP Implementation: Procedures

11f. If Yes, is the POTW licensed as a treatment, storage, and disposal facility?

☐ Yes ☒ No ☐ NA

Section II: File Review

1a. Are there any specific IUs that you would like us to review during our inspection?

☐ Yes ☐ No

1b. If Yes, please list and state reason.

Industry Name	Reason
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2. IU's selected for review:

Industry Name	CIU/SIU File Review Form Number
Cadillac Castings	1

3. Industrial Users inspected:

Industry Name	IU Site Visit Evaluation Form Number
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Section III: Summary and Evaluation

1. Violations, deficiencies and required corrective actions:

Deficiency and/or Violation	Required Corrective Actions
Failure to apply categorical standards in the CIU permit	Permit updates
Failure to require the semi annual report required for CIUs under 323.2310	Permit updates
The POTW does not have sufficient information on file to determine which pretreatment standards apply	Obtain process information, flow data, flow diagrams, and production data as necessary to make a categorical determination
Control Authority staff do not have sufficient training to implement the approved program successfully	Further staff training or additional outside resources to assist with program implementation

SNC Evaluation: Facilities that meet any Level I criteria or two or more Level II criteria are considered to be in SNC

Level I Criteria:

2a. Failure to enforce against Pass-through and Interference

☐ Yes ☒ No

Level II Criteria:

2b i. Failure to issue/reissue >10% of SIU permits within 180 days.

☐ Yes ☒ No

2b ii. Failure to inspect or sample at least 80% of SIUs in the past year

☐ Yes ☒ No

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Section III: Summary and Evaluation

2b iii. Failure to enforce pretreatment standards and reporting requirements. (more than 15% of SIUs in SNC in the past year and not returned to compliance within 90 days of SNC determination or in compliance with an enforceable schedule).

☒ Yes ☐ No

Based on a review of SNC reported by the POTW in the annual report the POTW is failing to enforce the pretreatment standards according to the above criteria: AAR Rinse Tank SNC reported for Jan 2019 - June 2020, Arvco SNC reported for the whole of 2019 and 2020, Cadillac Castings SNC reported for the whole of 2019 to Nov 2020, Michigan Rubber SNC for the whole of 2019, Rec Boat Holdings Trailer Division SNC for the whole of 2019 and 2020. These 5 SIUs account for 25% of the SIUs. These facilities are not under an enforceable schedule.

2b iv. Any other violation of concern to the Approval Authority. Explain in the comments.

☒ Yes ☐ No

Failure to implement procedures to ensure compliance with the requirements of a pretreatment program: the CA must implement procedures to identify the character and volume of pollutants contributed to the publicly owned treatment works by the nondomestic users. The CA does not have sufficient information to apply the appropriate pretreatment standards in an enforceable permit issued to the IU. The permits issued to the IU do not include the required elements including required reporting elements and which include the information necessary to apply the correct pretreatment standards.

Control Authority staff do not engage in training to become more familiar with pretreatment regulations and don't appear to be making progress towards successfully implementing the program.

2c. Does the facility meet SNC criteria?

☒ Yes ☐ No

3. SIU Details

SIU Details	Number
Number of SIUs (Includes CIUs)	20
Number of CIUs	8
Number SIUs not inspected or not sampled	3 not sampled
Number of SIUs w/o a current control mechanism	
Number of SIUs w/o a permit	

At least one CIU may be incorrectly classified.

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IPP - CIU File Review Form 1

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A. General Information

1. Industrial User (IU) Name: Cadillac Castings

2. Facility Location: 1500 Fourth Avenue,
Cadillac MI 49601

3. Facility Mailing Address (if different):

4. Contact Information

Contact Name	Title	Phone Number	Email
Erik Olson	HSE Manager	231-779-9638	eolson@cadillaccasting.com

5a. Industry Description:

Iron Foundry. 100% ductile iron castings.

The POTW doesn't have a background file on this facility that Mr. Langworthy is aware of. No information in the file regarding flow data, which processes discharge to sanitary sewer or how flows are combined.

5b. CIU Classification

464 Subpart C - Ferrous Casting

6. Process Flow Information

Process	Average Daily Flow (GPD)	Max Daily Flow (GPD)	Actual	Estimated
Unknown				X

It is not known based on the information on file which processes the facility discharges from, categorical or otherwise. Mr. Langworthy was able to tell me the majority of water used at the plant was cupola cooling water, but there are likely other processes in use as the facility does have some treatment on site and produces waste water with elevated metals content which would not be accounted for for NCCW alone. While the permit states this facility is categorical as a ferrous metal casting facility it's unclear how this was determined. There is no information on the facility processes, no flow information, and no flow diagram on file for this facility. At the time of the inspection the CIU could not provide a flow diagram.

The facility doesn't report any flow information to the POTW, no annual report is required by the facility permit, although the plant is still required to submit this report under part 403. The plant doesn't have flow meters. The permit doesn't require the facility to have any flow meters.

7. Non-categorical wastewater

Description	Average Daily Flow (GPD)	Max Daily Flow (GPD)	Actual	Estimated
Non-Contact Cooling Water				
Boiler Blowdown				
Sanitary				

No information in the file of flows volumes categorical or non-categorical

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A. General Information

8. Total Plant Flow:

Flow (GPD)	Actual	Estimated
105,000 GPD		X

Total plant discharge is estimated by the CA at 85% of the metered water usage (123,700 gallons/day) from the city drinking water supply (loss due to evaporation).

9. Notes:

B. Production Based Limits

10. Are any of the processes regulated under Categorical production-based limits? If no, mark questions 12-16 N/A ☒ Yes ☐ No

The permit states that the facility is categorical (IPP annual report states this is Part 464) but this is only described as a Cast Iron Foundry in the permit, the part is not listed and the categorical processes aren't identified. Note that all of the categorical processes under Part 464 C (ferrous metal casting) are production based limits but no categorical limits are included in the permit.

11. Record the production and flow rate given for each process in the most recent compliance report:

Process	Production Rate	Flow Rate
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The facility has not submitted any semi-annual reports with information on processes, production rates or flow rates.

12. Does the permit contain mass or concentration discharge limits equivalent to the production-based limits, calculated by the POTW? (40 CFR 403.6(c)(2)) If no, skip to Q13. ☐ Yes ☒ No ☐ NA

The permit does not contain any of the categorical limits, only the local limits. Unless the facility has been incorrectly classified as a CIU the categorical limits must be applied. There is not sufficient information in the CA records to determine if this facility is categorical.

12a. Does the POTW have documentation of how the equivalent mass or concentration limits were derived? (40 CFR 403.6(c)(7)) ☐ Yes ☒ No ☐ NA

The POTW is not applying any categorical limits.

12b. Does the POTW use the same production/flow data to derive all equivalent limits (daily maximums and monthly averages etc.)? (40 CFR 403.6(c)(8)) ☐ Yes ☐ No ☒ NA

12c. Are the production rates in Question 11 significantly different from the production rates used to calculate the equivalent mass/concentration limits in 12a? (R 323.2311(5)(g)/40 CFR 403.6(c)(9)) ☐ Yes ☐ No ☒ NA

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B. Production Based Limits

12d. If yes, did the facility submit a notification of a change in production to the POTW in accordance with the requirement (R 323.2311(5)(g)/40 CFR 403.6(c)(9))? ☐ Yes ☐ No ☐ NA

No semi-annual report is required in the permit. No production based limits are applied in the permit. The POTW does not have sufficient information to determine which, if any, categorical limits apply.

12e. Are the equivalent mass/concentration limits correctly calculated based on the average flow and production? (40 CFR 403.6(c)(3) and (c)(4)) ☐ Yes ☐ No ☐ NA

There are no calculations for production limits as these have not been applied.

12f. If the equivalent limit is given as a concentration, is that limit based on a reasonable measure of the IUs long-term average flow rate (e.g. average daily flow during a representative year)? (40 CFR 403.6(c)(4)) ☐ Yes ☐ No ☒ NA

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B. Production Based Limits

12g. The facility permit contains the following additional requirements:

Parameter	Yes	No	N/A
Equivalent limits for all production-based limits		X	
The production rate/flow the POTW based the equivalent mass/concentration calculations on (or this may be provided in separate correspondence)		X	
A requirement to notify the POTW within two business days after the IU has a reasonable basis to know that the production level will significantly change within the next calendar month from the levels the equivalent mass/concentration limits are based ...		X	
A requirement to submit within 90 days of the date for final compliance with the categorical limit or following commencement of discharge for new sources a reasonable measure of the IU's long-term production rate (40 CFR 403.12(d))			X
A requirement to report a reasonable measure of the IU's long-term production rate in the semi-annual report (R 323.2310(4)(c)/40 CFR 403.12(e)(4))		X	

The permit also states the additional requirement that the facility submit a certification annually that none of the listed organic compounds (no list is provided) are used or discharged. Note that the Part 464 requirements for TTO monitoring do not provide an option for a TTO certification. Part 464 does allow for alternative O&G monitoring in lieu of TTO monitoring but this is not stated in the permit.

12h. Does the facility meet the production-based standards based on the equivalent mass or concentration limits calculated by the POTW? ☐ Yes ☐ No ☐ NA

Based on the information available it cannot be determined if the facility is meeting the production based standards. The facility is regularly violating the permit limits stated (local limits) however.

13. Does the facility permit directly apply the production-based limits from the regulation instead of applying equivalent mass/concentration limits? (40 CFR 403.6(c)(2). If NO, mark NA for question 14, 15, & 16) ☐ Yes ☒ No ☐ NA

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B. Production Based Limits

14. Does the facility permit contain the following additional requirements:
All applicable production-based limits

Parameter	Yes	No	N/A
All applicable production-based limits		X	
A requirement to report the IU's actual production (or other measure of operation) rate for the reporting period in the semi-annual report? (40 CR 403.12(e)(4))		X	
A requirement to submit within 90 days of the date for final compliance with the categorical limit or following commencement of discharge for new sources the IU's actual production during the appropriate sampling period (40 CFR 403.12(d))		X	X
A requirement to submit sampling results, and production and flow for the date(s) of sampling (40 CFR 403.12(g)(1)) as required to convert the sample results to mass per unit of production		X	

15. Has the IU correctly calculated the production-based limits based on the production rates reported? ☐ Yes ☒ No ☐ NA

The POTW has not applied any categorical limits.

16. Has the CA correctly determined the IU is in compliance with the production-based limits? ☐ Yes ☒ No ☐ NA

C. Permit Information

15a. Is the IU's permit current? ☒ Yes ☐ No ☐ NA

15b. Date issued: 01/14/2021

15c. Effective Date, if different: 01/01/2021

Effective date cannot be prior to the issued date.

15d. Expiration Date: 12/31/2022

16. If reissued during the evaluated period, did previous permit exceed 5-year duration or was expired and not extended? ☐ Yes ☐ No ☒ NA

17. Date categorical process operations began

Facility has been in operation ~70 years. It is unclear if this is categorical so not known when categorical operations began.

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C. Permit Information

18. Is this a new facility?

☐ Yes ☒ No

19. Are there any new processes at this facility? If Yes, describe in the comments.

☐ Yes ☒ No

Based on his previous inspection Mr. Langworthy does not believe there any new processes at that facility.

20. Does the Control Authority have adequate information to correctly apply categorical and local pretreatment standards? ☐ Yes ☒ No ☐ NA

The POTW does not have a file documenting the information necessary to determine if the facility is discharging from categorical processes. The IU's are not required to submit a permit application to provide the necessary information to make a categorical determination. The inspection reports do not provide sufficient information to make this determination either. The permit does not require annual reporting of production, categorical flows, non-categorical flows or which processes are in use. It is not stated in the permit which categorical limits apply to the CIU. The permit only states the facility is a categorical industry (Cast Iron Foundry) but not the categorical part, subpart, if the PSNS or PSES apply, or which for which categorical processes.

21. Does this facility appear to be correctly categorized?

☐ Yes ☒ No ☐ NA

No categorical limits have been applied although the facility permit states the facility is categorical. It is not clear that the CA understands if or how to apply the categorical limits.

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C. Permit Information

22. The permit contains:

Parameter	Yes	No	NA
Appropriate local limits	X		
Categorical standards		X	
Limits adjusted for combined wastestream formula (CWF) or flow-weighted average (FWA)		X	
Most restrictive of local limits and categorical standards		X	
Total toxic organic (TTO) limits		X	
Toxic Organic Management Program			X
Sampling frequency	X		
Correct sample types	X		
Representative sample location clearly identified		X	

The permit only includes local limits and does not list any categorical limits even by reference. TTO limits are also not included or the alternative O&G limit. The permit incorrectly references the need to submit a TTO certification statement. Part 464 does not allow the facility to certify or submit a TOMP in lieu of sampling for TTO contaminants. The facility may however sample of O&G instead according to the limits states under the appropriate categorical process. Note that if the facility does monitor for TTO the list of contaminants differs by process - this must be included in or referenced in the permit.

The permit includes only one sample location for the local limits standards which may not be appropriate to determine compliance with the categorical standard if there are any other waste streams combined with the categorical stream prior to sampling or the CWF must be used to adjust the permit limits.

Mr. Langworthy does not believe that there is a separate discharge for sanitary effluent for the facility so the CWF would certainly apply if sampling was only conducted at one point and if categorical limits apply.

24a. Is flow proportional composite sampling required?

☐ Yes ☒ No

The permit must state flow proportional composites are required unless the CA can show that a time proportional composite is appropriate and this is documented.

24b. If No, does IU file contain documentation that grab or time proportional composite sampling is representative?

☐ Yes ☒ No

25. This permit contains the following additional requirements:

Statement of permit non-transferability,
Statement of applicable civil and criminal penalties

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D. Monitoring Summary Table (1)

26. Permit limits and monitoring summary table: Complete the table below.
A=Annually, S=Semiannually, Q=Quarterly, M=Monthly, W=Weekly, X/Q=# of Times Per Quarter, X/W=# of Times Per Week

Parameter	Daily Max (mg/L)	Monthly Average (mg/L)	User Monitoring Frequency - Required	User Monitoring Frequency - Conducted	POTW Monitoring Frequency - Required	POTW Monitoring Frequency - Conducted	Sample type (i.e. composite vs grab)	Sample Type Conducted	Monitoring point
Flow	Report		Daily	No record of flow reported					
pH (min)	5.5				1/wk	1/wk	G	G	Sampling manhole
pH (max)	9.5				1/wk	1/wk	G	G	Sampling manhole
Conductance		Report			1/wk	1/wk	G	G	Sampling manhole
Cadmium		0.002			1/Q	3/yr	C	C	Sampling manhole
Copper		0.099			1/Q	3/yr	C	C	Sampling manhole
Lead		0.1			2/M	2/M	C	C	Sampling manhole
Molybdenum		0.118			2/M	2/M	C	C	Sampling manhole
Nickel		0.185			1/Q	3/yr	C	C	Sampling manhole
Silver		0.003			1/Q	3/yr	C	C	Sampling manhole
Zinc		0.835			2/M	2/M	C	C	Sampling manhole

POTW is meeting the requirement of sampling at least once a year for this CIU but isn't meeting the frequency stated in the permit. For Cadmium, Copper, Nickel, and Silver no sample was collected for the last quarter of 2020. Mr. Langworthy didn't know why this was and thought this may be an administrative error.

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E. Self-Monitoring and Reporting

27. Reports were certified and certification language is included

Parameter	Yes	No	NA
Number of compliance reports received in accordance with permit		X	
Compliance reports were received by due date		X	
All parameters monitored at frequency specified in the permit			X
Samples collected at monitoring location specified in the permit			X
Correct sample type			X
Analytical methods appear to be correct			X
Holding times exceeded			X
Flow data provided		X	
Reports were signed by authorized representative		X	
Reports were certified and certification language is included		X	
Report included BMP compliance information			X
TTO/TOMP certification language included			X

Part 464 has no TOMP/TTO certification option.

The permit does not include any reporting requirements. At a minimum the permit must require the CIU to submit the all the reports stated under R 323.2310 needed to assess and assure compliance. Even if the CA is conducting the sampling required by the permit and the categorical standard a semiannual report is still required to determine compliance with the categorical standard. This is a requirement under Part 23 and 40 CFR 403.12. Reports must include a reasonable measure of the facility production rate for each of the categorical processes present on site and the facility flow report. Without this information it is not possible to determine if the facility is in compliance or if any equivalent concentration limits are appropriate.

The permit also requires submission of a spill prevention program by April 1, 2021. The CIU did not submit a plan. No compliance action was taken by the CA in response.

28. Was this facility required to submit any of the following reports during the inspection evaluation period?

Slug Control Plan
score='null'

29. Were all additional reports in #28 received by the date specified by the POTW?

☐ Yes ☒ No ☐ NA

F. POTW Oversight

30a. This IU was inspected during the year covered by the Pretreatment Compliance Inspection.

☒ Yes ☐ No ☐ NA

30b. Date of inspection:

01/14/2021

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F. POTW Oversight

31. Inspection documentation includes:

Parameter	Yes	No	NA
Date of the inspection	X		
Name of the person(s) conducting inspection	X		
Contact information		X	
Whether it was scheduled or unannounced		X	
Process description		X	
Description of wastewater characteristics	X		
Wastewater flow information		X	
Wastewater treatment information		X	
Assessment of storage areas	X		
Assessment of production areas	X		
Evaluation of the need for a slug plan (FIPPs every 2 years)			X
A review of discharge routes to sanitary (floor drains)	X		
Assessment of housekeeping		X	
IU laboratory practices		X	

Would recommend the staff receive further training on what they are looking for during the inspection. Some items are included in the check list but the inspectors response doesn't include the required information. At a minimum the inspection should include an assessment of the sources of the discharge to the POTW - both categorical and non-categorical the types of pollutants discharged, flow information, any treatment on site, if the discharges are correctly routed (ie do not combine with the sanitary prior to the categorical sampling points), if sample points are appropriate.

32. Is inspection documentation adequate?

☐ Yes ☒ No ☐ NA

33a. Were violations noted in the inspection report?

☐ Yes ☒ No ☐ NA

33b. If Yes, was enforcement action taken? If Yes, explain in the comments.

☐ Yes ☐ No ☒ NA

34a. Did this IU have any discharge limit violations during the evaluation period? If Yes, please list in 34b.

☒ Yes ☐ No

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F. POTW Oversight

34b. Monitoring Violations:

Date of Violation	POTW or Self-Monitoring Violation?	Parameter	Applicable Limit	Monitoring Result	Enforcement Action Date/Type	Resample in 30 days?	Return to Compliance?
01/31/2020	POTW	Molybdenum	118 ug/l MMA	240.5 ug/l MMA	02/28/2020	Y	N
02/29/2020	POTW	Molybdenum	118 ug/l MMA	310.0 ug/l MMA	03/30/2020	Y	N
03/31/2020	POTW	Molybdenum	118 ug/l MMA	147.7 ug/l MMA	04/14/2020	Y	Y
05/31/2020	POTW	Molybdenum	118 ug/l MMA	130.0 ug/l MMA	06/22/2020	Y	N
06/30/2020	POTW	Molybdenum	118 ug/l MMA	219.0 ug/l MMA	07/14/2020	Y	Y
08/31/2020	POTW	Molybdenum	118 ug/l MMA	227.0 ug/l MMA	09/21/2020	Y	Y
08/31/2020	POTW	Zinc	835 ug/l MMA	950.5 ug/l MMA	09/21/2020	Y	Y
08/31/2020	POTW	Cadmium	2 ug/L MMA	3 ug/L MMA	09/21/2020	N	Not sampled
10/31/2020	POTW	Molybdenum	118 ug/l MMA	209.0 ug/l MMA	11/23/2020	Y	N
11/30/2020	POTW	Molybdenum	118 ug/l MMA	134.8 ug/l MMA	12/28/2020	Y	Y
01/31/2021	POTW	Zinc	835 ug/l MMA	2779.0 ug/l MMA	3/4/2021	Y	Y
03/31/2021	POTW	Molybdenum	118 ug/l MMA	245.5 ug/l MMA	04/26/2021	Y	N
04/30/2021	POTW	Molybdenum	118 ug/l MMA	126 ug/l MMA	5/19/2021	Y	N
05/31/2021	POTW	Molybdenum	118 ug/l MMA	204.5 ug/l MMA	6/11/2021	Y	N
06/30/2021	POTW	Molybdenum	118 ug/l MMA	159.0 ug/l MMA	7/20/2021	Y	N
07/31/2021	POTW	Molybdenum	118 ug/l MMA	142.8 ug/l MMA	8/12/2021		
07/31/2021	POTW	Zinc	835 ug/l MMA	1386.0 ug/l MMA	8/12/2021		

POTW did not resample as required for the cadmium August 2020 violation. VNs only issued in 2020, no fines. Molybdenum is a chronic problem, violating the local limit repeatedly. The CA should be escalating enforcement action to bring the facility into compliance. One Violation noticed issued late by the CA. The majority are issued promptly. The VN issued by the CA should require the CIU to return to compliance with the permit.

35. Was the level of enforcement for monitoring violations appropriate to the violation(s)(was it in accordance with the approved Enforcement Response Plan)? If no, explain in the comments.

☐ Yes ☒ No ☐ NA

The POTW has not been following the ERP. Mr. Langworthy was not aware he had a copy of the ERP until asked to check the POTW IPP folder.

Cadillac WWTP : 15637

IPP - CIU File Review Form 1

Inspector: Claire Lowe

Start Date: 08/18/2021

F. POTW Oversight

36a. Did this IU have any reporting or compliance schedule violations during the evaluation period? If yes, please list below in 36b. ☒ Yes ☐ No

No semi-annual reports were submitted, however the current CIU permit does not require the CIU to submit a semi annual report. This must be corrected. The permit does require the CIU to submit a slug control plan by April 1, 2021, however this was never submitted. The POTW did not take any follow up compliance action as required according to the ERP.

36b. Reporting and Schedule Violations

Report type and Compliance Schedule Item	Date Due	Date Past Due	Enforcement Action Taken	Date Returned to Compliance
No semi-annual reports submitted	None - not required by permit		None	
No slug control plan submitted	April 1, 2021	Not submitted	None	Has not returned to compliance

37. Was the level of enforcement for reporting and schedule violations appropriate to the violation (was it in accordance with the approved Enforcement Response Plan)? If not, explain in the comments. ☐ Yes ☒ No ☐ NA

The POTW is not following the ERP. Mr. Langworthy was not aware of the ERP.

38a. Was this IU evaluated for significant noncompliance (SNC) during the evaluation period? ☒ Yes ☐ No ☐ NA

Note TRC limits for SNC for Molybdenum = $118 \times 1.2 = 141.6$, Cadmium $2 \times 1.2 = 2.4$, Zinc $835 \times 1.2 = 1002$

38b. Was the IU in SNC in any quarter of the evaluation period? ☒ Yes ☐ No ☐ NA

39. Was this IU inspected as part of this review? If Yes, complete IU Site Visit Evaluation Form. ☐ Yes ☒ No

Closing Information

Additional Comments:

Mr. Langworthy is willing to comply with the requirements of the program, however he does not have sufficient time or resources to do this effectively. Mr. Langworthy does not appear to have been given sufficient training in the requirements of the program to apply it correctly. The information needed to correctly apply the pretreatment standards has not been collected and it is not possible to determine based on the information available if Cadillac Castings has been correctly classified as a CIU. If Cadillac Castings is a CIU then the permit issued to the CIU is wholly inadequate to maintain the facility in compliance with the pretreatment standards

Inspector: Claire Lowe

Date of inspection: 09/09/2021

Cadillac WWTP : 15637

IPP - Areas Evaluated

Inspector: Claire Lowe

Start Date: 08/18/2021

Areas Evaluated

<i>1. Enforcement Response Plan</i>	Un-Satisfactory
The ERP appears to be appropriate, however the Control Authority is not applying the ERP. No appropriate enforcement action is taken beyond issuing violation notices or publishing SNC. Violation notices do not require the violating IU to return to compliance. There is no escalation of enforcement if an IU does not return to compliance. Some facilities are in chronic SNC and no action is taken to bring the IU back into compliance as stated in the ERP.	
<i>2. Evaluate Significant Industrial User List</i>	Not Evaluated
<i>3. Industrial User Files</i>	Un-Satisfactory
The file for Cadillac Casting Inc. did not include sufficient information for the Control Authority to determine if the IU was a categorical facility. The CA did not have on file any information about the processes producing wastewater, a flow diagram, information about the volume of flow, pretreatment processes, or how long the processes on site had been discharging. The information on file did not include enough information to determine what limits should be applied or if sampling was appropriate to determine compliance with those limits.	
<i>4. Industrial User Permits</i>	Un-Satisfactory
The Cadillac Casting Inc. permit states this facility is classified as a CIU but does not include appropriate categorical limits, requirements for appropriate reporting of production and flow, or changes to production. The permit includes inappropriate TTO certification which is not permitted under Part 464 Subpart C.	
<i>5. Interjurisdictional Agreements</i>	Not Evaluated
<i>6. Legal Authority</i>	Not Evaluated
<i>7. Local Limits</i>	Un-Satisfactory
A MAHL has not been conducted for many years despite changes to the NPDES permit and to the contributing industries.	
<i>8. Procedures</i>	Not Evaluated